BEFORE THE COURT OF HON'BLE DISTRICT & SESSIONS JUDGE, AT AURANGABAD

Cri. Bail App. _____/2023

Petitioner :- **Ganpat s/o Namdev Gaikwad**
Age 47 years occ: Private Service
R/o: Prakash Nagar, Cidco N-2,
Aurangabad.

Versus

Respondent: The State of Maharashtra
Through Mukundwadi **Police Station**
Aurangabad

Cri. No. **111/2023**

OFFENCE: U/sec. 420,419,406, 465, 466, 467, 468, 470, 471, 120(B) of Indian Penal Code

Subject:- **AN APPLICATION UNDER SECTION 439 OF CR.P.C. FOR REGULAR BAIL.**

Note:- This is the first bail petition at Sessions Court and no other petition pending in any other court.

Hon'ble Sir,

The applicant most humbly submits as under:-

That, on the count of complaint lodged by informant namely Abasaheb Nanasaheb Deshmukh with police station Aurangabad alleging therein that, He is working as a certified auditor under the control of Cooperative Commissioner and Registrar Cooperative Society Maharashtra State Pune and his panel number is 15182. He audit the Co-operative Societies and submit its (audit report) report to the Deputy Registrar Co-operative Societies. It is further alleged that on dated 27/06/2021 Jai Gangamai Nagari Cooperative Credit Society was issued to informant by District Deputy Registrar Co-operative Society Aurangabad Ordered in writing to conduct a statutory audit (audit) for the year 2020-2021 (dated

01/04/2020 to 31/03/2021) of the credit institution Mukundwadi, Indira Market, CIDCO N-2, Gangamai Complex Main Road, Mukundwadi Aurangabad. Informant have done the statutory audit and submitted the report dated 18/10/2022 to the concerned Deputy Registrar of Co-operative Societies, Aurangabad.

On 16/11/2022 Specified report submitted. During the audit, informant noticed that there was a malpractice in the said institution, so informant referred the matter to Hon. Deputy Registrar Co-operative Societies Aurangabad. He has given a written order to file a case against the embezzler under Section 81(5)B of the Maharashtra Co-operative Societies Act, 1960. Credit Institution is registered under Maharashtra Co-operative Societies Act 1960, Rules 1961 Dated 02/11/2002 and registration number of the institution is AGD/AGD/RSR/CR/201/2002. Mr. Maroti Baburao Mirge worked as manager from 2008 to 2017 and Mr. Ganpat Namdev Gaikwad worked as manager from 2017 to 31/03/2019. Also there are others in the organization as their managers. Maharashtra Co-operative Societies Act 1960, Rules 1961 and Bye-laws. According to the provisions of section 50, the duty of the manager is to keep the records of the organization in order, to safeguard the assets of the organization, to safeguard the assets of the organization, to take good care of the assets of the organization, to register members' loan accounts, members' deposit accounts, deposit guarantee loan accounts, Keeping records, hard disk of computer system, taking backup of transaction records in software from time to time, verifying and saving the loan proposal along with collateral and other ancillary documents are properly or not.

It is further alleged that Mr. Gajanan Ganpat Thale was appointed as an employee in the organization from 2015 to 29/06/2019, as an employee, his work in the organization is to prepare proposals and put

them before the board of directors for approval, to act according to the orders of the board of directors, to keep daily accounts. While conducting the statutory audit of the faculty for the year 2020 to 2021 (dates 01/04/2020 to 31/03/2021), it was found that the managers Mr. Maroti Mirge and Ganpat Namdev Gaikwad did not perform the responsibilities required as managers for the purpose of mutual malfeasance. On the other hand, it has been seen that they have committed misdemeanors such as writing false accounts, creating false evidence, betrayal, fraud, embezzlement, withdrawing money from the bank and depositing it without depositing it in the institution, taking loans by creating bogus accounts.

It is further alleged that from the year 2015-2017 Mr. Maroti Mirge and from the year 2017 to 31/03/2019 Mr. Ganpat Namdev Gaikwad was appointed as the manager, he has given deposit guarantee loans in the name of many depositors and while repaying the loan demand applications and original fixed deposits Receipts not found on record. Also, the disbursed deposit mortgage loan amount is defaulted to be recovered with interest and interest on the loan is outstanding. Also, the deposit amount of the respective depositors is paid even when the deposit loan is outstanding.

As per Sub-Rule No. 50, both managers are required to exercise control over the employees of the organization. But since they did not control themselves, the organization has been defrauded in many financial ways by themselves and the employees, misuse of the organization's funds, conspiracy, abuse of authority, misleading accounting, submission of incomplete documents, misappropriation of money by making false entries in the register of the institution. Also Co-operative Act Rules, Bye-laws, Hon. Cooperative Commissioner.

According to office circulars and government decisions/circulars, the loan allocation limit terms and conditions have been violated. Limitation by the then manager and employees of the organization as per the loan rules in the bye-laws. Ganpat Gaikwad has been paid Rs 28,71,0899/- as principal amount by him also admitting that he took the amount himself. However, the interest amounting to Rs.23,12,652/- (end of 31.03/2021) has not been paid. Member loan Rs 9,18,129/- Own loan coming to account Loan was Rs 17,47,033/-. Out of which Rs.8,28,901/- has been paid and Rs.9,18,9,29/- is yet to be paid. Member mortgage loan:- Rs.37,00,000/- and interest on it is Rs.1,25,806/- Total amounting to Rs.38,25,806/- Ganpat Nagdev Gaikwad Requests a written extension of time for depositing the embezzled amount for which post debit check of Rs.40 lakhs An agreement was written to the President of the Gaudwar Institute for payment of Rs. But as the said check was dishonored, as an alternative way, a compromise was made between the organization and the employee Mr. Ganpat Namdev Gaikwad and he took his relative 1) Gulabrao Shamarao Dalvi as guarantor and took his house and his wife Mrs. The plot in the name of Anjana Ganpat Gaikwad has been mortgaged to the institution. A new mortgage loan of Rs 37 lakh was given. He has misappropriated a total amount of 38,25,806/- without depositing the said loan along with interest in the institution.

Member loan Rs.5,19,887/- and interest on it is Rs.3,34,302/- making a total of Rs.8,54,1,89/- out of previous member loan of (04) members Rs.5,19,8,87 /- Due to mutual closure of the loan account when the loan was outstanding, the organization suffered financial loss. A total of 8,54,1,89/- financial loss of Rs.3,34,302/- has been incurred on the said amount as of 31/03/2021.

A total of (06) member's loan / short term loan, loan demand application is incomplete. Full collateral is not taken for the loan amount.

The said loan is Rs.11,30,000/- disbursed. Even when disbursement requires the approval of the Board of Directors and is known, the loan has been disbursed without the approval of the Board of Directors and in connivance with the borrower. He disbursed the loan in cash while it was mandatory to pay the loan by check, he has agreed to this and has paid Rs.4,50,000/- into the said loan account. d. At the end of 31,03/2021, the principal amount is Rs.12,01,848/- and the interest on it is Rs.3,31,5,62/- making a total of Rs.15,33,410/- outstanding. 21,81,484/- in respect of temporary embezzlement.

1) Mr. Ganpat Namdev Gaikwad embezzled by creating bogus loan accounts in the name of (07) borrowers totaling Rs.16,20,997/- and interest amounting to Rs.5,60,487/- amounting to Rs.21,81, 4, 84/- when the embezzlement was noticed. At that time Ganpat Gaikwad has paid the amount.2) An amount of Rs.25,88,372/- has been embezzled by mutual withdrawal in total (16) transactions. From time to time the amount was withdrawn from Malkapur Bank but not deposited in the institution. Also, some amount was withdrawn from the institution to be paid to Devagiri Bank, but it was not paid. Also, he deposited the amount in the loan account / savings account of some borrowers in his own savings account and withdrew the cash from it himself. Later it was pointed out that Gaikwad Ganpat Namdev He also agreed to take the amount himself and paid the principal amount of Rs.28,71,0899/- But the interest amounting to Rs.23 12652/- (end of 31.03/2021) has not been paid.

Member loan Rs.9,18,129/- Loan coming to own loan account was Rs.17.47,033/-. Out of which Rs.8,28,901/- is paid and Rs.19,18,9,29/- is still outstanding. Member mortgage loan :- Rs.37,00,000/- and the interest on it is Rs.1,25,806/- making a total of Rs.38,25,806/- Ganpat Nagdev Gaikwad has requested a written extension of time to deposit the embezzled amount and a post debit check of Rs.40 lakhs. An agreement

to pay by giving was written to the president of the institution on a promissory note of Rs.100/. However, as the said check was dishonored, as an alternative way, a compromise was made between the organization and the employee Mr. Ganpat Namdev Gaikwad and he took his relative 1) Gulabrach Shamarao Dalvi as guarantor and took his house and his wife Mrs. The plot in the name of Anjana Ganpat Gaikwad has been mortgaged to the institution. A new mortgage loan of Rs 37 lakh was given. He has misappropriated a total amount of 38,25,806/- without depositing the said loan along with interest in the institution.

It is further alleged that Regarding temporary embezzlement of Rs.21,81,484/- Shri Ganpat Namdev Gaikwad created bogus loan accounts in the name of total (07) borrowers. A total embezzled amount of Rs.16,20,997/- and interest on it amounting to Rs.5,60,487/- totaling Rs.21,81,4,84/- has been paid by Ganpat Gaikwad at the time when the embezzlement was noticed. An amount of Rs.25,88,372/- has been embezzled by mutual withdrawal in total (16) transactions. From time to time the amount was withdrawn from Malkapur Bank but not deposited in the institution. Also, some amount was withdrawn from the institution to be paid to Devagiri Bank, but it was not paid. Also, he deposited the amount in the loan account/savings account of some borrowers in his own savings account and withdrew the cash from it himself. It came to light later that Gaikwad Ganpat Namdev Rs.25,88,372/- have been paid. Individual statement regarding responsibility for bad loan amount due to misappropriation / misappropriation / misappropriation of loans Employee wise consolidated statement of embezzled amount. 31/03/2021 Total due interest due Balance.

Based on the above points, it has been revealed that an amount of Rs.1,52,37,653/- (literally one crore fifty-two lakhs thirty-two thousand six hundred and fifty-three) has been embezzled in the present situation.

,33,293/- a total of 1,14,33,525/- (Literal Rupees One Crore Fourteen Lakh Thirty Three Thousand Four Hundred Twenty Five) needs to be recovered. Likewise the allegations the FIR has been registered with Mukundwad police station Aurangabad

That, the present petitioner was filed Anticipatory bail before the Hon'ble Dist & Sessions court bearing No. 538/2023 same was rejected on 10/04/2023 and thereafter the petitioner has filed bail application before Hon'ble High Court Bench at Aurangabad bearing No. 557/2023 and the interim bail was granted in condition to deposit Rs 20,00,000/- within 10 days thereafter the petitioner has withdrawn the said application, thereafter the petitioner has surrendered before the Hon'ble J.M.F.C. court at Aurangabad on 21/06/2023 and petitioner has filed main bail application along with interim bail application before the Hon'ble J.M.F.C. court and Hon'ble JMFC court has granted the Interim Bail and passed the order to furnish surety of Rs 50,000/- the present petitioner has furnished surety of Rs 50,000/- before Hon'ble JMFC at Aurangabad and Police demanded the custody of accused, thereafter the Hon'ble court has directed to accused to appear before Investigation Officer on 28/06/2023 and thereafter petitioner taken into M.C.R. on 07/07/2023 After hearing of main bail application Hon'ble J.M.F.C. court has rejected the bail application of the applicant on 17/07/2023.

That, the petitioner is in M.C.R. since 07/07/2023 the police authority has filed charge sheet against the present petitioner before J.M.F.C.court thereafter petitioner has filed Regular Bail application before J.M.F.C.court and J.M.F.C. court has rejected on 11/10/2023. Hence the petitioner approached to this Hon'ble Court for seeking Regular bail on the ground of change of circumstances by relying upon following amongst the other grounds:-

GROUNDS

I) That, the present petitioner is peace loving and law abiding citizen and resides within the jurisdiction of this Hon'ble court.

II) That, the present FIR has been registered on false and bogus facts. The facts stated in the FIR are fabricated, concocted and without any basis.

III) That, the petitioner belongs from respectable family, having a deep roots in society and there is no any single dispute and there is no any kind of criminal past history of the accused/ petitioner. As such, the nature and the character of the petitioner is un-blemished. However, so as to damage the image of petitioner, the falsify blames has been alleged by the informant.

IV) That, as per the allegation leveled in the FIR and charge sheet, nothing has to be recovered or discovered at the hands of present petitioner therefore, there is no need of keeping the present petitioner behind the bar.. Moreover, the evidence in the present crime is of documentary in nature, therefore, the question of tampering of the evidence does not arises at all, therefore, there is no need of keeping the present petitioner behind the bar.

V) That, in the aforesaid crime the concerned investigation officer has investigated the matter and filed the charge sheet bearing R.C.C. No. 2294/2023.

VI) That, all the sections are triable by the JMFC.

VII) That the petitioner is having immovable property within the jurisdiction of this Hon'ble court and therefore there is no chance flee away from the jurisdiction of this Hon'ble court.

VIII) That, the present petitioner is not influential person, therefore, there is no chance of tampering and hampering of the prosecution witness.

IX) That, if the Hon'le court perused the remand papers, it reveals that, the petitioner was produced with MCR list, itself shows that there is no further need of present petitioner for further investigation. Therefore there is no need of keeping the present petitioner behind the bar.

X) That, the present petitioner is only earning person in his family wife, and two small sons who are depending upon the present petitioner. If petitioner kept behind the bar, his family will be starved.

XI) That the present petitioner is a senior citizen and suffering from B.P. and Asthama and therefore he required daily medication.

XII) That, the petitioner is ready to furnish surety and abide with any condition if imposed by this Hon'ble court, as such petitioner may kindly be released on bail.

In such circumstances, bail petition may please be allowed and petitioner may kindly be released on Regular bail.

HENCE IT IS PRAYED THAT

A) The Bail petition may kindly be allowed.

B) The petitioner may kindly be released on Regular Bail in Cr. No. 111/2023 registered with Cidco Police Station Aurangabad for an offence u/s 420,419,406, 465, 466, 467, 468, 470, 471, 120(B) of Indian Penal Code of Indian Penal Code, & oblige.

Date:- /10/2023
Place: Aurangabad
Through:-

Accused/Petitioner

Adv.R.Y.UGHADE
(Limbikar)

Ganpat s/o Namdev Gaikwad

Adv. M.K.JAGTAP